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Section A - Solicitation/Contract Form

H.P. Compressor Rental - Walk-in Refrigerated Units

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Rental of SIX (6) self-contained walk-in refrigerated units (electric) for acceptable space of food and medicine storage. Pricing Arrangement: Firm Fixed Price	11	Months		
Option Line Item 1001	Rental of SIX (6) self-contained walk-in refrigerated units (electric) for acceptable space of food and medicine storage. Pricing Arrangement: Firm Fixed Price	6	Months		
2001	Rental of SIX (6) self-contained walk-in refrigerated units (electric) for acceptable space of food and medicine storage. Pricing Arrangement: Firm Fixed Price	6	Months		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

B-232-H001 PAYMENTS--BASIC (NAVSEA) (JAN 2019)

(Jan 2019)

(a) Computation of Payments

(1) Until such time as physical progress in the performance of work on a vessel is fifty percent (50%) complete, the Government, upon submission by the Contractor of invoices certified by the Contractor as hereinafter provided, will promptly make payments, on account of the total contract price(s), at ninety percent (90%) of the amount determined by multiplying the allocated total contract price of such vessel by the percentage of physical progress in the performance of work on such vessel as certified by the Contractor subject to the approval of the Supervisor; provided, that no such payment shall be made in an amount which when added to the total of all payments previously made with respect to such vessel under paragraph (a) of this requirement exceeds one hundred percent (100%) of the allowable costs certified by the Contractor on the related invoice to have been incurred in the performance of work on such vessel.

(2) After the percentage of physical progress in the performance of work on a vessel has reached fifty percent (50%), the Government, upon submission by the Contractor of invoices certified by the Contractor as hereinafter provided, will promptly make payments, on account of the total contract price(s), of one hundred percent (100%) of the amount determined by: (i) multiplying the allocated total contract price of such vessel by the percentage of physical progress in the performance of work on such vessel as certified by the Contractor subject to the approval of the Supervisor, and (ii) subtracting from that product five percent (5%) of the allocated total contract price of such vessel; provided, that no such payment shall be made in an amount which when added to the total of all payments made previously with respect to such vessel under paragraph (a) of this requirement exceeds one hundred five percent (105%) of the allowable costs certified by the Contractor on the related invoice to have been incurred in the performance of work on such vessel; provided, further, that the Contractor furnishes data on actual cumulative costs and estimated future costs acceptable to the Supervisor which demonstrates to the satisfaction of the Supervisor that the Contractor will make a profit of at least five percent (5%) on completion of the contract, and the Contractor provides updated information on a quarterly basis. If updated data indicate the Contractor will not make a profit of at least five percent (5%) on completion of the contract, the progress payments shall be adjusted retroactively so that the total of all payments made with respect to the vessel under paragraph (a) of this requirement shall not exceed one hundred percent (100%) of the allowable costs certified by the Contractor on the related invoice to have been incurred in the performance of work on such vessel.

(b) Billing Price

(1) For the purpose of this requirement, until the establishment of the total final price(s) in accordance with paragraph (d) of the clause of this contract entitled "Incentive Price Revision--Firm Target (FAR 52.216-16)", the term "total contract price" means the billing price; initially the billing price shall be the initial total contract target price(s), and there after the billing price shall be revised as provided in paragraph (b)(2) below. After establishment of the total final price(s) in accordance with paragraph (d) of the "Incentive Price Revision--Firm Target (FAR52.216-16)" clause, the billing price shall be the total final price(s) so established.

(2) Within fifteen (15) days after each calendar quarter the Contractor shall submit in writing a proposed revised billing price which shall be established as follows:

(i) The Contractor shall certify to the Contracting Officer the percentage of physical progress in the performance of the contract as a whole as of the end of the calendar quarter. Such percentage of physical progress shall be expressed as a decimal carried to four decimal places and shall be subject to the approval of the Supervisor.

(ii) The revised billing price shall be the sum of a projected final cost(s), and a projected profit, and the Total EPA Amount (positive or negative), as determined in the contract requirement entitled "Economic Price Adjustment", computed as follows:

(A) A projected final cost shall be computed by (i) determining the cumulative sum of the costs as of the end of the calendar quarter, and (ii) dividing this amount by the percentage of physical progress certified and approved as set forth in subparagraph (i) above. From this amount, the Total EPA Amount (positive or negative) incurred through the end of the applicable billing period, as determined in the contract requirement entitled "Economic Price Adjustment" will be subtracted.

(B) A projected profit shall be determined by applying to the projected final cost(s) as calculated in paragraph 2(ii)(A), the incentive formula set forth in paragraph(d)(2) of the "Incentive Price Revision--Firm Target (FAR 52.216-16)" clause.

(C) The sum of the projected final cost, as calculated in paragraph (A), and the projected profit, as calculated in paragraph (B), shall not exceed the total Ceiling Price set forth in Section B.

(D) The sum of (C) above and the EPA Adjustment amount (positive or negative) shall be the revised billing price; provided that in no event shall the revised billing price exceed the sum of (i) the product of four point zero (4.0) percentage points applied to the Section B Target Cost plus (ii) the Section B Ceiling Price.

(iii) The revised billing price determined as stated above shall be set forth separately in a supplemental agreement to this contract, which also shall set forth the computations upon which the revision of the billing price is based.

(iv) Any revision of the billing prices shall not affect the determination of the total final price(s) under paragraph (d) of the "Incentive Price Revision--Firm Target (FAR 52.216-16)" clause. After execution of the contract modification referred to in subparagraph (d)(3) of said clause, the total amount paid or to be paid on all invoices or vouchers shall be adjusted to reflect the total final price(s), and any additional payments, refunds, or credits resulting therefrom shall be promptly made.

(c) Allocated Total Contract Price of Each Vessel

For the purpose of this requirement, the allocated total contract price of each vessel shall be established by multiplying the total contract price(s) by a percentage, expressed as a decimal carried to four decimal places, equal to that fraction whose numerator is the original unit target price of the vessel and whose denominator is the original total target price. The resulting dollar amount shall be rounded to the nearest one hundred thousand dollar (\$100,000), upward or downward; provided that in no event shall the sum of the allocated total contract price of the vessel(s) exceed the total contract price(s). The aforesaid percentages of each vessel shall be revised, by contract modification, in the event that either:

(1) Equitable adjustments to the unit target prices of the vessels result in unit target prices of a substantially different proportion to the total target prices than previously provided for under this subparagraph (c); or

(2) Incurred costs indicate that a revision to the percentages is appropriate; provided, however, any such revision shall not be made more frequently than at the end of a calendar quarter unless the total contract price(s) is(are) limited to the contract ceiling price(s) and the contract ceiling price(s) is(are) adjusted during the calendar quarter.

(d) Invoices

Invoices may be submitted every two weeks, but not more frequently; provided, however, that if after contract award more frequent progress payments are approved by the cognizant Government authority, this requirement shall be modified accordingly without additional consideration by the Contractor to the Government for such modification. No payment will be required to be made upon invoices aggregating less than five thousand dollars (\$5,000).

The Contractor shall certify on each invoice:

(1) The percentage of physical progress in the performance of work on the vessel as a decimal carried to four places; and

(2) The allowable costs incurred in the performance of the work on the vessel as of the date the invoice is submitted. Such certification shall provide for cost category reporting in accordance with the Contractor's normal accounting system and shall be broken down into direct material, direct labor, and indirect costs.

(e) Physical Progress and Weighting Factors

(1) Within sixty (60) days after contract award the Contractor shall submit a progressing system description for review and approval by the Contracting Officer. Upon approval of such system, progress payments shall be in accordance with the approved system. Subsequent revisions to the approved system shall be submitted to the Contracting Officer for approval prior to implementation.

(2) The mutually agreed upon weighting factors for the categories of labor and material for each vessel are set forth in Attachment ___, to this contract. The weighting factors shall be revised quarterly concurrent with the billing price revisions specified in paragraph (b). Notwithstanding the above, revision of weighting factors may be requested by either party when factual data indicate that the weighting factors then in use are no

longer representative of the actual labor and material distribution. Revisions of weighting factors shall be supported by detailed (estimated final) direct material, direct labor, and indirect costs and additional data concerning the cause of the change in the weighting factors. Any change in the weighting factors shall be set forth in a supplemental agreement to this contract.

(f) Incurred Costs

For the purpose of this contract requirement, "incurred costs" are those costs identified through the use of the accrual method of accounting, as supported by the records maintained by the Contractor and which are allowable in accordance with Part 31 of the Federal Acquisition Regulation (FAR) and Part 231 of the Department of Defense FAR Supplement (DFARS) in effect on the effective date of this contract and include only:

(1) Costs for items or services purchased directly for the contract that have been paid by cash, check, or other form of actual payment; or when the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for items or services purchased directly for the contract and associated financing payments to subcontractors provided payments will be made;

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily prior to the submission of the Contractor's next payment request to the Government; and

(2) Costs incurred, but not necessarily paid, for materials issued from the Contractor's stores inventory and placed in the production process for use on the contract, for direct labor, for direct travel, for other direct in-house costs and for properly allocable and allowable overhead (indirect) costs, all as shown by records maintained by the Contractor for the purpose of obtaining payment under Government contracts, provided that the Contractor is not delinquent in payment of costs of contract performance in the ordinary course of business; and

(3) With respect to allocated and allowable costs of pension contributions, when pension contributions are paid by the Contractor to the retirement fund less frequently than quarterly, accruals of the costs of these pension contributions shall be excluded from the Contractor's incurred costs until such costs are paid. If pension contributions are paid on a quarterly or more frequent basis, accruals of such costs may be included in the Contractor's incurred costs, provided that the pension contributions are paid to the retirement fund within thirty (30) days after the close of the period covered by payment. If payments are not paid within such thirty (30) day period, pension contributions shall be excluded from the Contractor's incurred costs until payment therefor has been made.

(4) Incurred costs shall not include any costs which are required under any requirement of this contract "" to be reimbursed or paid by the Government to the Contractor or by the Contractor to the Government other than through an equitable adjustment in the contract price(s).

(5) If an overpayment is made relative to this paragraph (f), interest shall be charged at the prevailing per annum rate established by the Secretary of the Treasury, pursuant to Public Law 92-41, from the date such overpayment is made until the date the overpayment is fully recovered.

(g) Retentions

(1) Upon preliminary acceptance of each vessel and upon the submission of properly certified invoices, the Government will pay to the Contractor the amount withheld under paragraph (a) of this requirement in respect of that vessel in excess of (i) a performance reserve in the amount of one and one-half percent (1.5%) of the total contract price for such vessel, or (ii) one hundred thousand dollars (\$100,000), whichever is greater. If at any time it shall appear to the Government that the amount of performance reserve may be insufficient to meet the cost to the Government of finishing any unfinished work under the contract for which the Contractor is responsible, or of correcting defects for which the Contractor is responsible which are discovered prior to preliminary acceptance or during the guaranty period of any vessel, the Government may, in making payments under this requirement, deduct or withhold such additional amounts as it may determine to be necessary to render such reserve adequate; provided, that any additional amounts deducted or withheld on account of defects which are discovered during the guaranty period of the vessel shall not exceed the limit of the Contractor's liability as set forth in the contract requirement entitled "Limitation Of Contractor's Liability For Correction Of Defects", reduced by the amounts of the cost incurred by the Contractor for work on such vessel because of Contractor responsible deficiencies which are discovered during the guaranty period of the vessel.

(2) The Government may, in its discretion, make payments prior to final settlement on account of the reserves established under this requirement, subject to such conditions precedent as the Contracting Officer may prescribe.

(3) The Government shall, at the time of final settlement, in accordance with the provisions of the contract requirement entitled "Final Settlement", pay the Contractor the balance owing to it under the contract promptly after the amount of such balance shall have been determined.

(h) Certifications and Audits

At any time or times prior to final payment under this contract, the Contracting Officer may have any invoices and statements or certifications of costs audited. The Contracting Officer may require the Contractor to submit, or make available for examination by the Contracting Officer or his designated representative, the supporting documentation upon which invoices, statements or certifications of costs are based. Each payment theretofore made shall be subject to reduction as necessary to reflect the exclusion of amounts included in the invoices or statements or certifications of costs which are found by the Contracting Officer, on the basis of such audit, not to constitute allowable costs. Any payment may be reduced for overpayments, or increased for underpayments on preceding invoices.

(i) Reduction or Suspension

The Contracting Officer may reduce or suspend payments after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (including but not limited to such requirements as quality, safety, care and protection).

- (2) Performance of this contract is endangered by the Contractor's
 - (i) Failure to make progress; or
 - (ii) Unsatisfactory financial condition
- (3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(End of Text)

Section C - Description/Specifications/Statement of Work

1. Scope:

1.1 Title: WALK-IN REFRIGERATED BOX

1.2 Job Order: TBD

1.3 Six (6) each: Self-contained walk-in refrigerated box (electric) for acceptable space for food and medicine storage.

1.4 Location of work:

1.4.1 NORFOLK NAVAL SHIPYARD (NNSY) Inside NNSY waterfront CIA area in support of the Project at Pier 5A. (location subject to change within NNSY).

2. Reference and Guiding Documents:

2.1 Refrigerated boxes shall comply with all governing codes and Naval Standards including the most recent Unified Facilities Criteria, International Building Code 2012, ADA and Requirements for Lifting Equipment.

2.2 United Facilities Criteria (UFC) 1-200-01, 3-301-01, 3-600-01.

2.3 National Fire Protection Association (NFPA) 1, Fire Code.

2.4 National Fire Protection Association (NFPA) 70, National Electrical Code (NEC).

2.5 Federal Specification RR-C-271H.

2.6 Hazardous Energy Control (HEC) procedures as identified in NAVSEA's Occupational Safety, Health, and Environment Corporate Manual (OSHECM) Chapter 250 (latest revision) (See web site in section 8.1.(b)).

3. General Specifications and Requirements:

3.1 Equipment Requirements:

3.1.1 Unit(s) will be cleaned, disinfected, and ready to store food or medicine prior to delivery.

3.1.2 Each unit shall be a minimum of 8' wide x 8' high (not including refrigeration unit) x 40' long.

3.1.3 Unit shall be electrically powered and capable of running 24 hours a day / 7 days a week. See attached enclosures (1), (2), (3) and (4).

3.1.4 Unit shall be rated at 200 amps or less. See attached enclosures (1), (2), (3) and (4).

3.1.5 Unit shall be capable of keeping a constant temperature of -3 degrees to 42 degrees (Fahrenheit).

3.1.6 Each unit shall be hurricane proof to 110 MPH winds and must be water resistant.

3.1.7 Each unit that has forklift connections in lieu of overhead rigging equipment and associated gear shall have forklift channels 5"x10" inside dimension the full width of the unit and enclosed on sides.

3.1.8 There shall be no windows in the units.

3.1.9 Each unit shall have exterior camlok connections to box feeding a 600 Volt, 40A (amp) 2-pole circuit breaker enclosed in a NEMA 3R enclosure feeding a 15kva, 440/240V primary:240/120V secondary, single-phase transformer. This is to feed a 15 kva, 480/240 volt primary, 240/120 volt secondary single phase transformer (see enclosure (2)). See enclosure (4) for a list of exterior equipment. Equivalent material may be substituted. Power cable end fittings (camlok) will be lugged and color coded to indicate proper phasing. See attached enclosures (1), (2), (3) and (4).

3.1.10 Each unit shall be in compliance with applicable NFPA and NEC requirements.

3.1.11 Each unit shall comply with the applicable OSHA regulations.

3.1.12 Provide a decal on each unit with the following information: Contractor company name, contract number and a unique number. The unique number must be different on each unit. The decal shall have the following: minimum of 8.5" x 11" in size, white in color with black writing. The decal is to be located on one of the doors of the unit. If the half of the unit does not have a door, an 11/3" x 4" at minimum label shall be placed on the electrical panel on the inside of the unit.

3.1.13 Each unit doors are to swing outward, and the doors must be capable of being locked.

3.1.14 Units shall be capable of being moved via forklift and/or lifting pad eyes. Unit shall have weight clearly marked for lifting purposes.

3.1.15 The equipment shall be outfitted with suitable attachments for overhead lifting (if applicable). This is not applicable for forklift lifting.

3.1.16 Each lifting attachment shall be capable of supporting one half the gross weight of the equipment with a design factor of five to one based on ultimate strength.

3.1.17 Each lifting attachment shall be designed to accept a standard anchor shackle (Federal Specification RR-C-271D, type IVA) which is capable of supporting one half the gross weight of the equipment.

3.1.18 Design of the lifting attachments shall be such that the shackles are not side loaded. This is not applicable for forklift lifting.

3.1.19 Each lifting attachment shall be conspicuously marked in a contrasting color "Lift Here". Letters shall have a minimum height of 1".

3.1.20 The equipment shall be provided with a lifting sketch / rigging diagram.

3.1.21 The lifting sketch shall detail any specific requirements and / or configurations that must be met prior to lifting (i.e. "engage swing lock", "Tilt mast back fully", "Rotate lifting basket over side", "Utilize 10' minimum length slings", "Spreader beam required", etc.). This is not applicable for forklift lifting.

3.2 One row of surface mount fluorescent twin tube strip type interior light fixtures with energy efficient electronic ballast and 32 watt fluorescent bulbs. Mount in center of enclosure. Light fixtures shall be blast proof.

3.3 All Wire must be THHN or THWN, 75 degrees Celsius (min), size as indicated. Do not substitute wiring type/temperature rating unless the ampacity of wire and conduit fill requirements are evaluated to ensure NEC compliance.

3.4 Electrical Metallic Tubing (EMT) is specified on drawings. The NEC requires EMT to be supported within 3 ft of each box or conduit body and supported every 10 ft (min).

3.5 Liquid Tight Flexible Metal Conduit (LFMC) may be used on the exterior instead of EMT. The NEC requires LFMC to be supported within 1 ft of each box or conduit body and supported every 4.5 ft (min).

3.6 The NEC requires the following color code for electrical wires:

3.6.1 Neutral (grounded conductor) = white

3.6.2 Note: may be phased taped white if larger than #6 AWG.

3.6.3 Ground (Equipment grounding conductor) = green

3.7 Contractor may use a fusible disconnect switch, NEMA 3R with current limiting fuses rated the same size as the circuit breaker in the enclosure (2) (PC-4 and PC- 5).

3.8 Receptacles: 120 volt, 20 Amp Quad type receptacles wired on a #12 AWG (min of two Quad Receptacles per circuit). Provide (1) ea 120 volt, 15 amp duplex GFCI test type receptacle wired on a dedicated circuit mounted on the exterior in a weatherproof box beside the unit.

3.9 Receptacles: 120 volt, 20 Amp Quad type receptacles wired on a #12 AWG (min of two Quad Receptacles per circuit). Provide (1) ea 120 volt, 15 amp duplex GFCI test type receptacle wired on a dedicated circuit mounted on the exterior in a weatherproof box beside the unit.

3.10 A typical transformer wiring diagram is shown in enclosure (3) in the drawing, use the manufacturers wiring schematic to connect transformer (schematic usually located on front panel of transformer). Transformer size may be adjusted depending on load demand of walk in refrigerated box enclosure.

3.11 Transformer frame shall be bonded to unit frame using appropriate size bonding jumper from NEC table 250.122, per NEC.

3.12 Markings:

3.12.1 The equipment shall be marked in a prominent location with vendor Point Of Contact information (i.e. Name and cell phone number) and date of end of contract.

3.12.2 The equipment shall be marked in a prominent location with the gross weight. Marking shall be upper case letters of a contrasting color, with a minimum height of 1". Marking shall include the units (i.e. "pounds", "long tons", etc.).

4. Period of Performance:

4.1 JUNE15, 2026 through MAY 15, 2027 (Allow for change of date. Start time may change due to ship's schedule.) Contract shall include the option to extend the contract for up to two (2) each six (6) month periods in one (1) month increments. Rental extensions may terminate the rental of one or more units based on use by NNSY. This charge will be prorated.

5. Contractor Requirements:

5.1 Provide POC information (name and phone number) on the equipment for NNSY to notify contractor of equipment failures.

5.1.1 One-Day Passes, Contact Temporary Service Zone Manager (TSZM) and fill out visit request form, NNSY 5512/104, also this request form must be presented to Pass Office by (TSZM) POC at least one day (M-F) prior to the visit or earlier. Prior to visit contact delivery POC to assist in one day pass at the pass office and delivery POC will provide shipyard site (escort). Participation in the DBIDS is not mandatory, and if the Contractor chooses to not participate, the Contractor's personnel will have to obtain daily passes, be subject to daily mandatory vehicle inspection, and will have limited access to the installation. The Government will not be responsible for any cost or lost time associated with obtaining daily passes or added vehicle inspections incurred by non-participants in the DBIDS.

5.2 Delivery crew security clearance request is required for shipment offload within the Controlled Industrial Area at NNSY. Contractor shall arrange the Security clearance request with the pass office at NNSY. See DBIDS section 10.1 through 10.14 for DBIDS participants.

5.2.1 One-Day Passes, Contact Temporary Service Zone Manager (TSZM) and fill out visit request form, NNSY 5512/104, also this request form must be presented to Pass Office by (TSZM) POC at least one day (M-F) prior to the visit or earlier. Prior to visit contact delivery POC to assist in one day pass at the pass office and delivery POC will provide shipyard site (escort). Participation in the DBIDS is not mandatory, and if the Contractor chooses to not participate, the Contractor's personnel will have to obtain daily passes, be subject to daily mandatory vehicle inspection, and will have limited access to the installation. The Government will not be responsible for any cost or lost time associated with obtaining daily passes or added vehicle inspections incurred by non-participants in the DBIDS.

5.3 Deliver and retrieve the walk-in refrigerated box to Norfolk Naval Shipyard, Portsmouth Virginia, inside the Controlled Industrial Area. (Exact location to be shown upon delivery by escort or (TSZM)).

5.4 Connect the accessory equipment that is not integral to the walk-in refrigerated box. See attached enclosures (1), (2), (3) and (4).

5.5 Contractors and Non-NNSY Government Agencies (NNGAs) are hereby informed that their employees or representatives present on location of work cognizance must adhere to Federal OSHA requirements for hazardous energy control IAW 29 CFR 1915.89 and must follow Hazardous Energy Control (HEC) procedures as identified in NAVSEA's Occupational Safety, Health, and Environment Corporate Manual (OSHECM) Chapter 250 (latest revision), when performing work under NNSY contract. All HEC work to be performed by Contractors and NNGAs requires that NNSY (TSZM) Points of Contact (TPOCs) and/or Contracting Officer's Representatives (CORs) be notified of the HEC scope of work prior to starting work. Any changes or deviations in the initial scope of HEC work require the NNSY TPOCs and/or CORs be informed of the change/deviation. Appendix 250.8-1 through B-3 of OSHECM Chapter 250 for multiple employer work identifies when Contractors and NNGAs are required to assign their Lockout/Tags- Plus Coordinator (LOTC) to coordinate HEC work with the cognizant NNSY LOTC. HEC locks shall be provided by the contractor or NNGA for their employees use. The HEC locks shall have red bodies with name labels or name tags affixed, identifying who installed the HEC lock(s) and a point of contact telephone number. HEC lock name labels and tags must be made of materials that will hold up to the environment to which they are exposed. HEC tags used for Tags-Plus HEC work shall be provided by the cognizant NNSY LOTC to the contractor or NNGA for their use if machinery, equipment, or systems (MES) cannot be locked out. OSHECM Chapter 250 Tags-Plus procedures will be strictly followed.

5.6 Provide commercial operating instruction manuals for the walk-in refrigerated box to (TSZM) POC.

5.7 Provide 24 hour a day, seven-day a week on-call repair service during the rental period. The vendor will be responsible for initiating repairs on-site, at Norfolk Naval Shipyard, within 12 hours of verbal or written notification that the equipment has malfunctioned. The contractor will replace the malfunctioning component if the system cannot be returned to service within 16 hours of being notified of the original malfunction.

5.8 Before any leased/purchased temporary production facility will be accepted by the government an inspection at location of work will be performed to ensure that the contractor has provided a product that conforms to the agreed specifications. If the inspection is not satisfactory, the contractor has 3 business days to correct the discrepancies (at contractor's cost) or the temporary production facility will not be accepted by the government.

5.9 Contractor provides a representative within 24 hours in order to modify units in the event the customer determines the units do not meet contract specifications.

5.10 Contractor personnel shall notify the (TSZM) POC for authorization prior to any work or maintenance on rental unit.

5.11 Lost items by Government personnel and equipment damaged beyond normal wear and tear Contractor must submit a claim separate from rental. This is to be submitted within 30 days of the end of the rental period.

5.12 The rental period shall be for slightly over three months with the option to return the unit to the contractor prior to end of contract allowing for a contract price reduction prorated per the monthly rate. The contract shall also include options for increasing the length of the rental for up to two six months increments beyond original contract.

5.13 Contractor to contact (TSZM) prior to the end of rental period to confirm pickup date.

6. Government Responsibility:

6.1 Government shall provide contractor ready access to the job location during contractor's working hours (i.e., weekdays between the hours of 7:30 AM and 4:00 PM). Emergent services outside these hours will require government approval and will be no cost to the government. The government is responsible for the cost of all additional approved or requested maintenance and repairs not specifically covered under this Agreement or any applicable warranties. The government will prevent anyone other than contractor from maintaining, repairing or modifying its product.

6.2 The government agrees to, upon satisfactory delivery and installation; connect walk in refrigerated boxes to temporary services. The government will also have temporary services disconnected upon completion of the contract in order to allow the contractor to remove the container or equipment from the shipyard.

6.3 The government will provide a COR, from code 400 to this project to maintain the contract is being completed and a C400/COR representative will be the point of contact to escort, if needed, once the contract is award.

7. Points Of Contact:

7.1 Technical POC:

TBD

Invoice Certifier / Delivery POC / Temporary Service Zone Manager (TSZM):

TBD

Contracting Officer Representative:

TBD

8. Safety Requirements:

8.1 "Per FAR 22.102-1(a) entitled "Safety", Contractors are hereby informed that their employees or representatives present on property under Norfolk Naval Shipyard cognizance must follow Federal and State OSHA requirements OSHE OSHECM Chapter Hazardous Energy Control (HEC) requirements or safety requirements for site specific location of the contract.

a. Contractors and Non-NNSY Government Agencies (NNGAs) are hereby informed that their employees or representatives present on property under Norfolk Naval Shipyard (NNSY) cognizance must adhere to Federal OSHA requirements for hazardous energy control IAW 29 CFR 1915.89 and must follow Hazardous Energy Control (HEC) procedures as identified in NAVSEA's Occupational Safety, Health, and Environment Corporate Manual (OSHECM) Chapter 250 (latest revision), when performing work under NNSY contract. All HEC work to be performed by Contractors and NNGAs requires that NNSY Technical Points of Contact (TPOCs) and/or Contracting Officer's Representatives (CORs) be notified of the HEC scope of work prior to starting work. Any changes or deviations in the initial scope of HEC work requires the NNSY TPOCs and/or CORs be informed of the change/deviation. Appendix 250.B-1 through B-3 of OSHECM Chapter 250 for multiple employer work identifies when Contractors and NNGAs are required to assign their Lockout/Tags-Plus Coordinator (LOTC) to coordinate HEC work with the cognizant NNSY LOTC. HEC locks shall be provided by the contractor or NNGA for their employees use. The HEC locks shall have red bodies with name labels or name tags affixed, identifying who installed the HEC lock(s) and a point of contact telephone number. HEC lock name labels and tags must be made of materials that will hold up to the environment to which they are exposed. HEC tags used for Tags-Plus HEC work shall be provided by the cognizant NNSY LOTC to the contractor or NNGA for their use if machinery, equipment, or systems (MES) cannot be locked out. OSHECM Chapter 250 Tags-Plus procedures will be strictly followed.

b. Contractors and NNGAs may obtain electronic copies of OSHECM Chapter 250 (latest revision) and access the OSHA 1915.89 web site by using the following link to NNSY's public access web site: <http://www.navsea.navy.mil/shipyards/norfolk/default.aspx>

c. Names and contact information for NNSY LOTCs and/or the Building Monitor will be provided by NNSY TPOC and/or Contracting Officer Representative set forth elsewhere in this award document.

Defense Biometric Identification System and NAVSEA Badging (REQUIRED FOR ALL CONTRACTS)

All contractors, with the exception of permanent party (or "seated" contractors with Common Access Cards (CACs), will be required to obtain a DBIDS card to gain access to NNSY.

Procedure for receiving a DBIDS card:

a. Contractor will complete the SECNAV 5512 form(s) and forward them to their NNSY Sponsor/Contracting Officer's Representative (COR).

b. The sponsor will complete the CVS spreadsheet utilizing the information on the completed SECNAV5512 forms and forward all documents to Commander Navy region Mid-Atlantic (CNRMA) for vetting.

c. CNRMA will add the contractor to the "179-Day List" which is utilized by the Pass and ID office to create the DBIDS card.

d. Once on the 179-Day List, the contractor may go to Pass and ID to have their DBIDS card generated.

e. Green NAVSEA access badges can be generated at this point with contractors providing proof of U.S. Citizenship (Birth Certificate/ US Passport).

Portable Electronic Devices (PEDs) (REQUIRED FOR ALL CONTRACTS)

A PED is defined as any non-stationary electronic apparatus with singular or multiple capabilities of, but not limited to recording, storing, and /or transmitting data, voice, video, or photo images (e.g., cell phones, laptops, tablets and wearable devices such as fitness bands and smart watches).

a. NAVSEA 04 Ser 04/281 IMPLEMENTATION PLAN FOR ALLOWING CAMERA-PORTABLE ELECTRONIC DEVICES WITHIN THE CONTROLLED INDUSTRIAL AREA

b. NAVSEAINST 2200.1A PORTABLE ELECTRONIC DEVICES POLICY

c. SECROMAN Vol 1 5510.36 Rev E

In accordance with ref (a), personally owned camera enabled PEDs will be authorized inside of the Controlled Industrial Area (CIA) and all Security Islands. Camera enabled PEDs will remain unauthorized within Controlled Nuclear Information Areas (CNIAs), Nuclear Work Areas (NWAs) and Open Storage Areas.

All PEDs, camera enabled or not, are still prohibited within NWAs and Open Storage Areas.

The allowance of camera enabled PEDs inside of the CIA and Security Islands does not negate existing photography policies. Unofficial photography, filming of video, or live streaming from the camera-enabled PED remains prohibited within the CIA or any NAVSEA controlled space outside of the CIA. Further, audio recordings (both digitally or magnetically) in NAVSEA spaces is prohibited without the approval of the Code 1120 Security Director.

Submarine SPECIFIC PEDs Instructions: In accordance with COMSUBLANT/ COMSUBPACINST 2075.1C, the use of PEDs while in or on Department of Navy Submarines are prohibited.

Access to Classified Information or Spaces

All contractors executing this contract are required to have a minimum security clearance of _____ (Completed by SME).

All contractors requiring access to classified information, or those spaces containing un-sanitized classified information, shall possess a final security clearance.

In addition to completing the steps above, if the contractor in accordance with the requirements of the contract, the contracting company's Facility Security Officer is required to submit a visit request in the Defense Information System for Security (DISS) to Security Management Office (SMO) Code 001816.

The SMO Code(s) of the ship or command the contractor is visiting are not to be utilized.

After receiving a DBIDS card, their visit request, security clearance and access permissions (verified in DISS) are reviewed to ensure they meet the minimum security requirements set forth in the contract. Once verified, the contractor will receive the appropriate NAVSEA access badge.

RESTRICTED DATA SPECIFIC

All contractors requiring a red NAVSEA badge and access to Restricted Data (RD) shall have a final security clearance.

Red NAVSEA badge personnel may require access to Nuclear Areas, Nuclear Information, Nuclear equipment, Naval Nuclear Propulsion Information (NNPI), RD, and Not Releasable to Foreign Nationals (NOFORN) data due to the nature of the work being performed on Naval Nuclear propulsion systems.

A red NAVSEA badge is necessary for the execution of nuclear and some non-nuclear work; inclusive of the propulsion plant and secondary spaces as well as those systems which support the propulsion plants which may not be located in the propulsion plant when any of those spaces can't be sanitized.

Access to RD and the issuance of red NAVSEA badges will be issued in accordance with NAVSEA M-5510.2.

CONTROLLED UNCLASSIFIED INFORMATION ACCESS

The DoD will provide information to contractors and will identify all information which is Controlled Unclassified Information (CUI) via the contracting vehicle, in whole or part, and will mark such documents, material, or media in accordance with this issuance.

When CUI is generated by non-DoD entities protective measures and dissemination controls, including those directed by relevant law, regulation, or government-wide policy, will be articulated in the contract, grant, or other legal agreement, as appropriate. DoD contracts must require contractors to monitor CUI for aggregation and compilation based on the potential to generate

classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information. DoD contracts require contractors to report the potential classification of aggregated or compiled CUI to a DoD representative.

Contractors, pursuant to mandatory DoD contract provisions, will submit unclassified DoD information for review and approval for release in accordance with the standard DoD Component processes and DoDI 5230.09.

All CUI records must follow the approved mandatory disposition authorities whenever the DoD provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and this issuance.

SEATED CONTRACTOR SPECIFIC

All contractors who receive CACs and are granted access to Navy or NNSY information technology systems and are stationed at NNSY as their permanent work location are considered to be "seated" contractors.

All seated contractors will be required to report to BLDG 1502, 2nd floor to the Personnel Security Office (Code 1127) for check-in. Code 1127 will own the seated contractor in the system of record and will be responsible for the maintenance for the contractor's security profile.

All seated contractors will be required to attend, at a minimum, the security education portion of NNSY New Employee Orientation.

The security education portion will contain, but is not limited to, Antiterrorism Level 1, Combatting Trafficking in Persons, Active Shooter training, Information Security, Personnel Security, and Operations Security Awareness training.

Further, all seated contractors will be required to complete all annual computer based security refresher training, which is tracked and verified by the training coordinator for the code to which the contractor is assigned.

Requirements

H.P. Compressor Rental - Walk-in Refrigerated Units for Organization 1210 - Waterfront Business Operations
Division FY: 2026, AMS: N42158-26-SIMACQ-NNSY-1210-0039

Additional Regulation or Supplemental Clauses Incorporated by Full Text

C-202-H001 ADDITIONAL DEFINITIONS--BASIC

(Oct 2018)

- (a) Department means the Department of the Navy.
- (b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.
- (c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.
- (d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:
- (1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.
 - (2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(Endof Text)

C-202-H002 ADDITIONAL DEFINITIONS--ALTERNATE I

(Oct 2018)

- (a) Department means the Department of the Navy.
- (b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.
- (c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.
- (d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and

acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(e) NAVSEA 08 means the Deputy Commander, Nuclear Propulsion Directorate, Naval Sea Systems Command of the Department of the Navy.

(f) Lead Shipbuilder, Lead Yard or Lead Shipyard mean (List contractor) in its capacity as Contractor under Contract No. (List Contract) for the construction of the (List first ship of the class).

(g) Follow Shipbuilder, Follow Yard or Follow Shipyard mean a prime contractor performing a contract for the construction of follow ships of the (List ship class) Class.

(h) Lead Ship or First Ship of the Class mean the (List first ship.)

(i) Follow Ship - means any ship of the (List class) Class other than the first ship.

(j) Design Agent means (List contractor) in its capacity as Design Agent, not in its capacity as shipbuilding contractor.

(End of Text)

C-211-H020 PROTECTION OF THE VESSEL (NAVSEA) (MAR 2019)

(Mar 2019)

(a) The Contractor shall exercise reasonable care, as agreed upon with the Supervisor, to protect the vessel from fire, and shall maintain a system of inspection over the activities of its welders, burners, riveters, painters, pipe fitters, and similar workers, and of its subcontractors, particularly where such activities are undertaken in the vicinity of the vessel's magazines, fuel oil tanks, or store rooms containing inflammable materials. All ammunition, fuel oil, motor fuels, and cleaning fluids shall have been offloaded and the tanks cleaned, except as may be mutually agreed upon between the Contractor and the Supervisor prior to work on the vessel by the Contractor. Fire hose lines shall be maintained by the Contractor ready for immediate use on the vessel at all times while the vessel is berthed alongside the Contractor's pier or in dry dock. All tanks under alteration or repair shall be cleaned, washed, and steamed out or otherwise made safe to the extent necessary, and the Contractor shall furnish the vessel's Gas Free Officer and the Supervisor with a "Gas Chemists' Certificate" before any hot work is done. The Contractor shall maintain a fire watch aboard the vessel in areas where the Contractor is working. All other fire watches aboard the vessel shall be the responsibility of the Government.

(b) Except as otherwise provided in contractually invoked technical specifications or NAVSEA furnished directives, while the vessel is at the Contractor's plant and when the temperature becomes as low as thirty five degrees Fahrenheit, the Contractor shall assist the Government when requested in keeping all pipelines, fixtures, traps, tanks, and other receptacles on the vessel drained to avoid damage from freezing, or if this is not practicable, the vessel shall be kept heated to prevent such damage. The vessel's stern tube and propeller hubs shall be protected by the Contractor from frost damage by applied heat through the use of a salamander or other proper means.

(c) The work shall, whenever practicable, be performed in such manner as not to interfere with the work performed by military personnel attached to the vessel, and provisions shall be made so that personnel assigned shall have access to the vessel at all times, it being understood that such personnel will not unduly interfere with the work of the Contractor's workmen.

(d) The Contractor shall at all times keep the site of the work on the vessel free from accumulation of waste material or rubbish caused by its employees, or the work performed by the Contractor in accordance with this contract, and at the completion of such work shall remove all rubbish from and about the site of the work, and shall leave the work in its immediate vicinity "broom clean", unless more exactly specified by the Supervisor.

(End of Text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

(Jan 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

C-211-H001 ACCESS TO THE VESSEL(S)

(Oct 2018)

Officers, employees and associates of other prime Contractors with the Government and their subcontractors, shall, as authorized by the Supervisor, have, at all reasonable times, admission to the plant, access to the vessel(s) where and as required, and be permitted, within the plant and on the vessel(s) required, to perform and fulfill their respective obligations to the Government. The Contractor shall make reasonable arrangements with the Government or Contractors of the Government, as shall have been identified and authorized by the Supervisor to be given admission to the plant and access to the vessel(s) for office space, work areas, storage or shop areas, or other facilities and services, necessary for the performance of the respective responsibilities involved, and reasonable to their performance.

(End of Text)

C-211-H016 SPECIFICATIONS AND STANDARDS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Definitions.

- (i) A "zero-tier reference" is a specification, standard, or drawing that is cited in the contract (including its attachments).
- (ii) A "first-tier reference" is either: (1) a specification, standard, or drawing cited in a zero-tier reference, or (2) a specification cited in a first-tier drawing.

(b) Requirements. All zero-tier and first-tier references, as defined above, are mandatory for use. All lower tier references shall be used for guidance only unless specifically identified below.

(End of Text)

C-211-W001 REPLACEMENT PARTS AVAILABILITY (NAVSEA) (OCT 2018)

(Oct 2018)

The contractor guarantees that replacement parts for each component part listed in this contract shall be available for a minimum of ___ [*insert period of time*] from the date of this contract. Subsequent to this period, if parts are not available from the contractor, the contractor shall, if requested by the Government, furnish data to enable the Government to have such parts manufactured elsewhere.

(End of Text)

C-215-H002 CONTRACTOR PROPOSAL (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Performance of this contract by the Contractor shall be conducted and performed in accordance with detailed obligations to which the Contractor committed itself in Proposal _____ dated _____ in response to NAVSEA Solicitation No. _____.

(b) The technical volume(s) of the Contractor's proposal is(are) hereby incorporated by reference and made subject to the "Order of Precedence" (FAR 52.215-8) clause of this contract. Under the "Order of Precedence" clause, the technical volume(s) of the Contractor's proposal referenced herein is (are) hereby designated as item (f) of the clause, following "the specifications" in the order of precedence.

(End of Text)

C-216-H001 MODIFICATION AND TERMINATION OF BASIC ORDERING AGREEMENT (BOA) (NAVSEA) (OCT 2018)

(Oct 2018)

This agreement shall be reviewed at least annually and revised, on or before the anniversary of its effective date, to conform with all requirements of statutes, Executive Orders, or regulations. Termination, expiration or modification of this agreement shall not affect any orders issued under this agreement prior to such termination, expiration or modification.

(End of Text)

Section D - Packaging and Marking

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Acceptance Location Acceptance Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES Leisa Wilson, COR Email: leisa.a.wilson.civ@us.navy.mil Telephone: (757) 396-0127	Inspection Location Inspection Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES Leisa Wilson, COR Email: leisa.a.wilson.civ@us.navy.mil Telephone: (757) 396-0127
Option Line Item 1001	Acceptance Location Acceptance Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance /inspection criteria. DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES Leisa Wilson, COR Email: leisa.a.wilson.civ@us.navy.mil Telephone: (757) 396-0127	Inspection Location Inspection Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance /inspection criteria. DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES Leisa Wilson, COR Email: leisa.a.wilson.civ@us.navy.mil Telephone: (757) 396-0127
2001	Acceptance Location Acceptance Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES Leisa Wilson, COR Email: leisa.a.wilson.civ@us.navy.mil Telephone: (757) 396-0127	Inspection Location Inspection Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES Leisa Wilson, COR Email: leisa.a.wilson.civ@us.navy.mil Telephone: (757) 396-0127

Section F - Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Estimated By Delivery Date 15 Jun 2026 Period of Performance From 15 Jun 2026 To 15 May 2027	11 Months	Service Performance Site DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES Leisa Wilson, COR Telephone: 757-396-0127
Option Line Item 1001	Period of Performance From 15 May 2026 To 15 Nov 2026	6 Months	
2001	Period of Performance From 15 Oct 2027 To 15 May 2028	6 Months	

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

2in1

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2in1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	<u>N50082</u>
Issue By DoDAAC	<u>N42158</u>
Admin DoDAAC	<u>N42158</u>
Inspect By DoDAAC	<u>N42158</u>
Ship To Code	==
Ship From Code	==
Mark For Code	<u>TBD</u>
Service Approver (DoDAAC)	<u>N42158</u>
Service Acceptor (DoDAAC)	<u>N42158</u>
Accept at Other DoDAAC	==
LPO DoDAAC	<u>N42158</u>
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	<u>050120</u>

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023) (Oct 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: Rebekah Riggins
Phone: 757-967-4014
E-mail: rebekah.r.riggins.civ@us.navy.mil

(ii) The Contract Specialist is:

Name: Theresa Clark
Phone: 804-677-5065
E-mail: theresa.m.clark36.civ@us.navy.mil

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: TBD
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

Name: TBD
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(f) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: TBD
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(g) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

The Alternate Technical Point of Contact (ATPOC) is:

Name: TBD
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(j) The Contractor's point of contact for performance under this contract is:

Name: TBD
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(End of Text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in

accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

AREA	FROM	TO
[insert specific Departments]	[insert times]	

(g) All deliveries to the Receiving Officer, ___ [Negotiator insert delivery location], shall be made Monday through Friday from ___ [Negotiator enter beginning hour of operation] to ___ [Negotiator enter closing hour of operation], local time. Deliveries will not be accepted after ___ [Negotiator enter closing hour of operation]. No deliveries will be accepted on federal government holidays.

(End of Text)

Section H - Special Contract Requirements

Additional Regulation or Supplemental Clauses Incorporated by Full Text

H-209-H003 REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST (NAVSEA) (NOV 2022) (Nov 2022)

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.
- (b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).
- (c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.
- (d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.
- (e) If the Contractor fails to take action required by this requirement, or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.
- (f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (j) Compliance with this requirement is a material requirement of this contract.

(End of Text)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Feb 2026		
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners. (Deviation 2026-O0038)	Feb 2026		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.246-7008	Sources of Electronic Parts.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services. (Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days[*60days unless a different number of days is inserted*] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 2 years(months) (years).

(End of clause)

Section J - List of Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Specifications	Drawings		25 Feb 2026

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☒ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.

(Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☒ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.

(May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

TECHNICAL CAPABILITY

TECHNICAL CAPABILITY/CONTRACTOR / RESPONSIBILITY CERTIFICATION STATEMENT

Vendor shall certify for equipment being quoted that his product meets each capability listed below by initialing at the bottom. In order to be considered for award, this must be completed and submitted with your quote.

Technical Capabilities Statement		
CLIN #0001 Specifications for (6) Self-contained walk-in refrigerated box (electric)		
Shall be provided with the following capabilities, features, and specifications:	YES	NO
- Unit(s) will be cleaned, disinfected, and ready to store food or medicine prior to delivery.		
- Each unit shall be a minimum of 8' wide x 8' high (not including refrigeration unit) x 40' long.		
- Unit shall be electrically powered and capable of running 24 hours a day / 7 days a week. See attached enclosures (1), (2), (3) and (4).		
• Unit shall be rated at 200 amps or less. See attached enclosures (1), (2), (3) and (4).		
- Unit shall be capable of keeping a constant temperature of -3 degrees to 42 degrees (Fahrenheit).		
- Each unit shall be hurricane proof to 110 MPH winds and must be water resistant.		
- Each unit that has forklift connections in lieu of overhead rigging equipment and associated gear shall have forklift channels 5"x10" inside dimension the full width of the unit and enclosed on sides.		
- There shall be no windows in the units.		
- Each unit shall have exterior camlok connections to box feeding a 600 Volt, 40A (amp) 2-pole circuit breaker enclosed in a NEMA 3R enclosure feeding a 15kva, 440/240V primary:240/120V secondary, single-phase transformer. This is to feed a 15 kva, 480/240 volt primary, 240/120 volt secondary single phase transformer (see enclosure (2)). See enclosure (4) for a list of exterior equipment. Equivalent material may be substituted. Power cable end fittings (camlok) will be lugged and color coded to indicate proper phasing. See attached enclosures (1), (2), (3) and (4).		
- Each unit shall be in compliance with applicable NFPA and NEC requirements.		
- Each unit shall comply with the applicable OSHA regulations.		

- Provide a decal on each unit with the following information: Contractor company name, contract number and a unique number. The unique number must be different on each unit. The decal shall have the following: minimum of 8.5" x 11" in size, white in color with black writing. The decal is to be located on one of the doors of the unit. If the half of the unit does not have a door, an 11/3" x 4" at minimum label shall be placed on the electrical panel on the inside of the unit.		
- Each unit doors are to swing outward, and the doors must be capable of being locked.		
- Units shall be capable of being moved via forklift and/or lifting pad eyes. Unit shall have weight clearly marked for lifting purposes.		
- The equipment shall be outfitted with suitable attachments for overhead lifting (if applicable). This is not applicable for forklift lifting.		
- Each lifting attachment shall be capable of supporting one half the gross weight of the equipment with a design factor of five to one based on ultimate strength.		
- Each lifting attachment shall be designed to accept a standard anchor shackle (Federal Specification RR-C-271D, type IVA) which is capable of supporting one half the gross weight of the equipment.		
- Design of the lifting attachments shall be such that the shackles are not side loaded. This is not applicable for forklift lifting.		
- Each lifting attachment shall be conspicuously marked in a contrasting color "Lift Here". Letters shall have a minimum height of 1".		
- The equipment shall be provided with a lifting sketch / rigging diagram.		
- The lifting sketch shall detail any specific requirements and / or configurations that must be met prior to lifting (i.e. "engage swing lock", "Tilt mast back fully", "Rotate lifting basket over side", "Utilize 10' minimum length slings", "Spreader beam required", etc.). This is not applicable for forklift lifting.		
- One row of surface mount fluorescent twin tube strip type interior light fixtures with energy efficient electronic ballast and 32 watt fluorescent bulbs. Mount in center of enclosure. Light fixtures shall be blast proof.		
- All Wire must be THHN or THWN, 75 degrees Celsius (min), size as indicated. Do not substitute wiring type/temperature rating unless the ampacity of wire and conduit fill requirements are evaluated to ensure NEC compliance.		
- Electrical Metallic Tubing (EMT) is specified on drawings. The NEC requires EMT to be supported within 3 ft of each box or conduit body and supported every 10 ft (min).		
- Liquid Tight Flexible Metal Conduit (LFMC) may be used on the exterior instead of EMT. The NEC requires LFMC to be supported within 1 ft of each box or conduit body and supported every 4.5 ft (min).		

CLIN 0001 TECHNICAL CAPABILITY/CONTRACTOR RESPONSIBILITY CERTIFICATION

Vendor hereby certifies that his/her service meets or exceeds all specifications in this solicitation, in their entirety, with no exceptions.
_____ (initials)

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Technical Capabilities Statement		
CLIN #0001 Specifications for (6) Self-contained walk-in refrigerated box (electric) electrical wiring required.		
Shall be provided with the following capabilities, features, and specifications:	YES	NO
- Neutral (grounded conductor) = white		
- Note: may be phased taped white if larger than #6 AWG.		
- Ground (Equipment grounding conductor) = green		
- Contractor may use a fusible disconnect switch, NEMA 3R with current limiting fuses rated the same size as the circuit breaker in the enclosure (2) (PC-4 and PC- 5).		
- Receptacles: 120 volt, 20 Amp Quad type receptacles wired on a #12 AWG (min of two Quad Receptacles per circuit). Provide (1) ea 120 volt, 15 amp duplex GFCI test type receptacle wired on a dedicated circuit mounted on the exterior in a weatherproof box beside the unit.		
- Receptacles: 120 volt, 20 Amp Quad type receptacles wired on a #12 AWG (min of two Quad Receptacles per circuit). Provide (1) ea 120 volt, 15 amp duplex GFCI test type receptacle wired on a dedicated circuit mounted on the exterior in a weatherproof box beside the unit.		
- A typical transformer wiring diagram is shown in enclosure (3) in the drawing, use the manufacturers wiring schematic to connect transformer (schematic usually located on front panel of transformer). Transformer size may be adjusted depending on load demand of walk in refrigerated box enclosure.		
- Transformer frame shall be bonded to unit frame using appropriate size bonding jumper from NEC table 250.122, per NEC.		

CLIN 0001 TECHNICAL CAPABILITY/CONTRACTOR RESPONSIBILITY CERTIFICATION

Vendor hereby certifies that his/her service meets or exceeds all specifications in this solicitation, in their entirety, with no exceptions.
 _____ (initials)

Technical Capabilities Statement		
CLIN #0001 Specifications for (6) Self-contained walk-in refrigerated box (electric) Marking required.		
Shall be provided with the following capabilities, features, and specifications:	YES	NO
- The equipment shall be marked in a prominent location with vendor Point Of Contact information (i.e. Name and cell phone number) and date of end of contract.		

- The equipment shall be marked in a prominent location with the gross weight. Marking shall be upper case letters of a contrasting color, with a minimum height of 1". Marking shall include the units (i.e. "pounds", "long tons", etc.).

CLIN 0001 TECHNICAL CAPABILITY/CONTRACTOR RESPONSIBILITY CERTIFICATION

Vendor hereby certifies that his/her service meets or exceeds all specifications in this solicitation, in their entirety, with no exceptions.
_____ (initials)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.212-1 **Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)** (Feb 2026)

INSTRUCTIONS TO OFFERORS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026) (DEVIATION 2026-O0038)

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include-

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation 2026-O0038) (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION 2026-O0038)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference*. A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture*. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

L-211-H001 UPDATES TO PERIOD OF PERFORMANCE AND DELIVERY DATES (NAVSEA) (JUN 2022) (Jun 2022)

For proposal purposes the estimated date of contract, task order, or delivery order award is _____. The government reserves the right to award sooner or later if necessary. The delivery dates and/or period of performance start and end dates in Section F will be updated at award based upon actual contract, task order, or delivery order award date.

(End of Provision)

Section M - Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation)

(Feb 2026)

EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026) (DEVIATION)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price/approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

Technical Capability

Schedule

Price

=====

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

M-247-H001 F.O.B. EVALUATION CRITERIA (NAVSEA) (DEC 2018)

(Dec 2018)

OFFERS SUBMITTED ON AN F.O.B. BASIS OTHER THAN THAT SPECIFIED IN SECTION F SHALL BE REJECTED AS UNACCEPTABLE.

(End of Provision)